

		cases, but it appears to this Court from Moving Party’s time records that the number of hours spent litigating this matter take into account the efficiencies of adapting prior applicable work product to the litigation of this case. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel’s skill and contingency risk are reflected in the reasonable hourly rates described above. The OSC re: Dismissal (Settled Case) currently scheduled for June 8, 2026, in Department C65 is CONTINUED to Monday August 10, 2026, at 1:30 pm. in Department C65. This continuance is to allow time for the attorney’s fees ordered in this ruling to be paid. Plaintiff shall give notice of this ruling.
4.	Armstrong Cal Builders, Inc. vs. Trinity Fence Company 25-01481008	Motion - Other (Declaration of Rights to Withheld Funds, Under Cal. Civ. Code § 9408) Plaintiff Armstrong Cal Builders, Inc.’s petition for order declaring the respective parties’ rights as to a stop notice in dispute or reducing the amount of the stop notice and the amounts withheld from a stop notice that was served by Respondent Trinity Fence Company is denied without prejudice on procedural grounds. Although the “petition” acknowledges the hearing must be held within 15 days of the filing of the petition (see petition, page 8, line 20), Armstrong made no effort to obtain a hearing within that time frame. The court’s record indicates the current hearing date of May 22, 2026, was assigned without objection by Armstrong. There was no ex parte application or any other effort to obtain a hearing within the statutory time limitation of 15 days. Furthermore, the Court is not satisfied on the present record that the withheld stop-payment notice funds should be released or reduced through this summary procedure. Material, factual and procedural disputes remain. These include issues related to service of the affidavit, timeliness of the counter-affidavit, the operative pleadings required by Civil Code section 9410, payments allegedly made to or on behalf of Trinity, disputed back charges, and the reasonable value of Trinity’s work. These issues are not sufficiently and firmly

		established in this Court's mind to warrant release or reduction of the withheld funds at this time. Trinity's request for attorney fees is denied without prejudice as premature. Plaintiff Armstrong to give notice.
5.	Palacios vs. FCA US, LLC. 25-01464074	Motion to Compel Production Plaintiff Yereli Palacios' Motion to Compel Compliance with CCP § 871.26(h) is CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12. Prior to filing a discovery motion, a "meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) Here, Plaintiff failed to meet and confer <i>prior</i> to filing the motion. Therefore, the hearing is continued to allow the parties to engage in a meaningful meet and confer. The Court disagrees with Plaintiff's position that no meet and confer is required in this context. The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> by June 26, 2026. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why. This Joint Status Report shall be filed by July 24, 2026. Clerk to give notice of this ruling.
6.	Rodriguez vs. Melo 25-01470408	Motion to Set Aside/Vacate Default Defendant Manuel Rivera Melo's motion to set aside default and/or default judgment pursuant to CCP section 473.5 is CONTINUED to July 10, 2026, at 9:30 a.m. in Department C12. At this time, there is no proof of service of the moving papers (i.e., the notice of motion and motion, memorandum of points and authorities, declaration, and all other supporting papers) on plaintiffs Virginia